

HOUSE No. 412

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creating uniform standards for section 12 and 15 license applications.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 412

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 412) of Bradley H. Jones, Jr., and others relative to the issuance of alcoholic beverage licenses to certain felons. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 339 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creating uniform standards for section 12 and 15 license applications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12 of Chapter 138 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the last sentence of the fourth paragraph and
3 inserting in place thereof the following:-

4 “No license shall be issued to any applicant who has been convicted of a felony; provided
5 however that for convictions which occurred before the 10-year period immediately preceding
6 application for licensure, an applicant may demonstrate, and the commission or local licensing
7 authority shall consider, the applicant's rehabilitation and whether such conviction should not be
8 an automatic rejection under this section.”

9 SECTION 2. Section 15 of Chapter 138 of the General Laws, as appearing in the 2022
10 Official Edition, is hereby amended by inserting after the word “felony” in line 41, the
11 following:-

12 “Provided however, that for convictions which occurred before the 10–year period
13 immediately preceding application for licensure, an applicant may demonstrate, and the
14 commission or local licensing authority shall consider, the applicant's rehabilitation and whether
15 such conviction should not be an automatic rejection under this section.”